

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, AUGUST 20, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**BANK OF AMERICA N.A. v. TRICIA LYNN LANDOF
Case No. CL25-10396**

Motion for Judgment on the Pleadings

TENTATIVE RULINGS:

The unopposed motion for judgment on the pleadings by Plaintiff BANK OF AMERICA N.A. is GRANTED. Defendant LANOF's answer admits the allegations in the complaint.

Judgment is for Plaintiff in the sum of \$13,232.51. Plaintiff may claim attorney's fees and costs as authorized by statute and pursuant to the procedures set forth in the Code of Civil Procedure and California Rules of Court.

**PLUMERIA ACCORD HOLDINGS, LLC v. VALDEZ, et al.
Case No. CU24-05629**

**OSC for Entry of Order of Sale Regarding 3362 Ticonderoga Drive, Fairfield
California 94534**

TENTATIVE RULING

Judgment creditor, judgment debtor(s) and all interested persons to appear.

PLUMERIA ACCORD HOLDINGS LLC seeks an order to compel the sale of 3362 Ticonderoga Drive to satisfy its \$104,167.70 judgment against BEN VALDEZ. The property is a dwelling and prior to causing the Sheriff to levy the judgment on debtor's

interest in the property judgment creditor must obtain a court order of sale following a noticed hearing. (C.C.P. §704.740.)

Judgment creditor estimates the value of the property to be \$581,200. Recorded liens include amounts for Caliber Home Loans and Secretary of Housing and Urban Development.

The main purpose of this hearing is to determine whether a homestead exemption applies, and if so, whether sale of the property will generate sufficient proceeds to pay the homestead exemption and earlier lien holders.

The homestead exemption is automatic and applies whenever sale of the dwelling is compelled.

Real property dwelling—“automatic” exemption: The judgment debtor or other exemption claimant need not file a claim of exemption after a real property dwelling is levied upon. Rather, the judgment creditor is required to obtain a court order for sale of the real property homestead. The court must determine at a hearing the amount of the “dwelling exemption” and the fair market value of the property.

Thereafter, the real property dwelling may not be sold at an execution sale unless the bid exceeds the amount needed to satisfy “all liens and encumbrances” on the property plus the amount of the homestead exemption. [CCP § 704.800(a); see generally, *Wells Fargo Fin'l Leasing, Inc. v. D & M Cabinets* (2009) 177 CA4th 59, 68-69, 99 CR3d 97, 104-105; see also *Rourke v. Troy* (1993) 17 CA4th 880, 885-886, 21 CR2d 660, 664—phrase “all liens and encumbrances” means those that are senior to lien of executing judgment creditor; and ¶ 9:1100 ff. for detailed discussion of homestead execution sales]. Ahart, *California Practice Guide, Enforcing Judgments and Debts* (The Rutter Group 2026), §10:551.

The automatic homestead exemption applies to a dwelling that has been used as the principal dwelling of the judgment debtor and/or their spouse from the time of recording of any abstract of the judgment. (C.C.P. §704.710(c).)

The amount of the automatic homestead exemption is the greater of the median of countywide house sales for a single family home not to exceed \$600,000 or \$300,000 adjusted for CPI since 2022. (See C.C.P. §704.730.)

Under C.C.P. §704.780, if a recorded homestead exists, the burden is on judgment creditor. If not, the burden of proof for a homestead exemption falls on the judgment debtor.

While no express claim for homestead exemption appears to have been filed by the judgment debtor, there is considerable evidence to suggest that the subject residence is the principal residence of the judgment debtor and/or his wife, and has been throughout the duration of this case. Judgment creditor’s moving papers identify Valdez’s last

known address as 3362 Ticonderoga Drive, Fairfield, CA 94534. The summons and complaint were subserved in August 2024 to the subject residence on the judgment debtor by delivery to a woman identified by the process server as “Jane Doe”, for whom a physical description was provided, followed by the word “Wife”. The request for entry of the judgment debtor’s default listed the address to which copies were mailed to him in October 2024 as that subject residence. The default judgment papers were served on the judgment debtor in February 2025 to that same subject residence. The writs of execution submitted to the court for issuance in March and May 2026 each listed the residence address for service by mail on the judgment debtor. And, finally, the service of the OSC and ex parte application papers was made by mail to the judgment debtor at that residence address, as well as personally served on “All Occupants”, on the judgment debtor’s wife, at that subject residence.

The purpose behind the automatic homestead exemption is to avoid rendering a judgment debtor homeless, and the applicable statutes are to be liberally construed to promote that strong public policy purpose.

“Homestead laws are designed to protect the sanctity of the family home against a loss caused by a forced sale by creditors. ... The homestead exemption ensures that insolvent debtors and their families are not rendered homeless by virtue of an involuntary sale of the residential property they occupy. Thus, the homestead law is not designed to protect creditors This strong public policy requires courts to adopt a liberal construction of the law and facts to promote the beneficial purposes of the homestead legislation to benefit the debtor [and his family].” (*Amin v. Khazindar* (2003) 112 Cal.App.4th 582, 588 [5 Cal. Rptr. 3d 224].) At issue here is the “automatic” homestead exemption (also called a “residential exemption”), which need not be memorialized in a recorded homestead declaration, and which is available when a party has continuously resided in a dwelling from the time that a creditor's lien attaches until a court's determination in a forced sale process that the exemption does not apply. (*Ibid.*) “Where a residential exemption is claimed, the judgment creditor is required to obtain a court order for sale of the real property homestead.” (*Id.* at p. 589.)

A homestead exemption does not preclude sale of the home but entitles the homesteader to receive the value of the exemption if the property is sold to satisfy a judgment lien. “When there is sufficient equity in the property, it may be sold and the exemption applies to the sales proceeds that are exempt from the claims of certain creditors and can be used by the debtor to acquire another residence.” (5 Miller & Starr, Cal. Real Estate (3d ed. 2000) Homesteads, § 13:43, p. 87.)

Compliance with section 704.740 affords the following protections to a person entitled to a homestead exemption: A hearing is held, at which the court determines whether a homestead exemption exists. (§§ 704.770, 704.780.) If the court determines a homestead exemption exists, “the court shall determine the amount of the homestead exemption and the fair market value of the dwelling. The court shall make an order for sale of the dwelling subject to the homestead exemption, unless the court determines that the sale of the dwelling would not be likely to produce a bid sufficient to satisfy any

part of the amount due on the judgment pursuant to Section 704.800. The order for sale of the dwelling subject to the homestead exemption shall specify the amount of the proceeds of the sale that is to be distributed to each person having a lien or encumbrance on the dwelling and shall include the name and address of each such person... ." (§ 704.780, subd. (b).) If no bid is received at the sale that exceeds the amount of the homestead exemption plus the amount necessary to satisfy all liens and encumbrances on the property, "the homestead shall not be sold and shall be released and is not thereafter subject to a court order for sale upon subsequent application by the same judgment creditor for a period of one year." (§ 704.800, subd. (a).) If no bid is received that is 90 percent or more of the fair market value determined by the court, the homestead shall not be sold unless the court, upon motion by the judgment creditor, grants permission to accept the highest bid exceeding the minimum bid or makes a new order for sale of the homestead. (§ 704.800.) When the property is sold, the proceeds are distributed in the following order: (1) to the discharge of liens and encumbrances, (2) to the judgment debtor in the amount of the homestead exemption, (3) to reimbursement of the levying officer's costs, (4) to the judgment creditor, and (5) to the judgment debtor in the amount remaining. (§ 704.850.) (*Wells Fargo Financial Leasing, Inc. v. D & M Cabinets* (2009) 177 Cal.App.4th 59, 67-69.)

No opposition to the OSC was filed. The court is prepared to review the value of the liens, the value of the exemption and to determine whether given the FMV identified by judgment creditor the sale would produce any funds that would apply towards the judgment.

DARNELL MOORE v. DONALD HURT, DRH CONSTRUCTION GROUP, and DRH INVESTMENT GROUP, LLC
Case No. CU25-06885

Plaintiff's Motion to Strike Verified Answer

TENTATIVE RULING

Plaintiff DARNELL MOORE's unopposed motion to strike Defendants DONALD HURT and DRH INVESTMENT GROUP, LLC's verified answer filed February 23, 2026 is DENIED.

The court acknowledges that the answer initially contains a general denial despite the fact that Plaintiff filed a verified complaint. Per Code of Civil Procedure section 431.30, subdivision (d), denials of allegations in a verified complaint "shall be made positively or according to the information and belief of the defendant," as opposed to merely being part of a general denial.

But the answer also proceeds to respond to each alleged paragraph.

LEWELLEN v. CITY OF FAIRFIELD, ET AL.
Case No. CU25-12033

Demurrer

TENTATIVE RULING

The demurrer by Defendants City of Fairfield, Samantha Burrows, David Gassaway, and Catherine Moy to Plaintiff's complaint is SUSTAINED WITHOUT LEAVE TO AMEND.

The demurrer is not moot. Plaintiff did not timely file an amended complaint by the date for filing an opposition, did not obtain leave from the court to file an amended complaint, and did not obtain a stipulation from all parties to file an amended complaint after the date for filing an opposition to the demurrer. (Code Civ. Proc. § 472(a).) Three demurrers are pending: City of Fairfield's set for hearing on August 20, 2026, Community Action Partnership's set for hearing on September 3, 2026 and Solano Transportation Authority's set for hearing on September 3, 2026. Plaintiff filed an opposition to a demurrer but did not specify which demurrer. Following judicial review, a proposed amended complaint was rejected by the court at direction of Department 8 on the basis that it was untimely and an opposition had been filed.

Plaintiff's complaint is ambiguous and unintelligible. (Code Civ. Proc. § 430.10(f).) It uses the Judicial Council form for claims based on contract, but does not allege the formation or existence of any enforceable agreement between the parties. It employs common count cause of action forms, but does not truly plead any express or implied promises to pay money; instead, they seem to seek restitution of the value of misappropriated funds recovered by a state auditor as a result of Plaintiff's "whistleblowing" or the alleged value of Plaintiff's "Turnkey" idea. It distributes various conclusory allegations of wrongdoing, such as "fraud" and "land shaving" and "devaluation" of land, among various "attachments" interspersed through the complaint, without explaining what Plaintiff means by the use of those terms or how the conduct of the demurring defendants makes them liable to Plaintiff in a private civil cause of action.

Although uncertainty can usually be cured by amendment, Plaintiff has not met her burden of showing that it is reasonably possible for Plaintiff to allege a valid cause of action against the demurring defendants.

To the contrary, demurring defendants show that various claims and legal theories that Plaintiff may have been attempting to state in her complaint cannot be maintained. There is no civil cause of action for obstruction of justice. (*Agnew v. Parks* (1959) 172 Cal.App.2d 756, 766.) An essential element of whistleblower retaliation is the existence of an employment relationship at the time of the allegedly retaliatory action, but there is no allegation that Plaintiff was ever an employee of Defendant City of Fairfield. (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 287-288; *Bennett v. Rancho Cal. Water Dist.* (2019) 35 Cal.App.5th 908, 921.) Plaintiff appears unable to state a claim of

fraud because Defendant City of Fairfield is absolutely immune from liability from any misrepresentations made by its employees (Gov. Code § 818.8; *Masters v. San Bernardino County Employees Retirement Ass'n* (1995) 32 Cal.App.4th 30, 43) and Plaintiff did not allege the corruption or actual malice of any employee to have made any misrepresentation to overcome that employee's qualified immunity (Gov. Code § 822.2; *Masters*, 32 Cal.App.4th at 42). And, Plaintiff cannot sue Defendant City of Fairfield on an implied-in-law theory. (*Katsura v. City of Buenaventura* (2007) 155 Cal.App.4th 104, 109-110.)

While courts liberally grant leave to amend, it is improper to do so when a plaintiff cannot state a viable cause of action or show how she will amend the complaint to do so.

TANEKA BENNION and JAMES OAKLEY III v. CITY OF VALLEJO and COUNTY OF SOLANO

Case No. CU26-00059

VALLEJO's Demurrer

TENTATIVE RULING

Defendant CITY OF VALLEJO ("VALLEJO") demurs to the cause of action for violation of the Bane Act within Plaintiffs TANEKA BENNION and JAMES OAKLEY III's complaint. Plaintiffs allege that VALLEJO's public works personnel killed their father James Oakley II ("Decedent") by crushing him along with his belongings with a backhoe during a homeless encampment cleanup operation. Plaintiffs allege that VALLEJO's personnel observed a mattress covered with a tarp but rather than properly investigate the mattress and ensure no human being was present simply kicked it and made a short verbal inquiry before proceeding to utilize heavy machinery.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint must allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians' Service* (2000) 81 Cal.App.4th 39, 43.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Bane Act Civil Rights. Civil Code section 52.1 (the "Bane Act") permits civil actions against persons who intentionally interfere with the civil rights of others. A plaintiff

asserting a Bane Act violation must show that the defendant interfered with or attempted to interfere with the plaintiff's legal rights by committing a threatening, intimidating, or coercive act. (*Doe v. State of California* (2017) 8 Cal.App.5th 832, 842.) The essence of a Bane Act claim is that the defendant, by specified improper means of threat, intimidation, or coercion, tried to or did prevent the plaintiff from doing something he had the legal right to do or tried to or did force the plaintiff to do something he was not legally required to do. (*Austin B. v. Escondido Union School District* (2007) 149 Cal.App.4th 860, 883 (*Austin B.*.)

Cornell v. City and County of San Francisco (2017) 17 Cal.App.5th 766 (*Cornell*) does not materially change that simple standard to something that could support Bane Act liability against VALLEJO on the facts alleged. In *Cornell* a police trainee on a jog found himself chased by police officers who thought he looked suspicious while in an area known for drug deals. (*Id.* at p. 771.) Pursuing officers threatened to shoot the trainee and eventually ordered him to the ground, arrested him, and subjected him to a drug test at a hospital. (*Ibid.*) The First District Court of Appeal held that the claim was properly submitted to the jury because there was enough evidence to support it where the pursuing officers threatened to use deadly force against the trainee, unlawfully arrested the trainee, and baselessly cited him with evading arrest. (*Id.* at p. 793.) and the officers' subjective spite and intentional violation of his right showed reckless disregard for his right. (*Id.* at pp. 803-804.)

The complaint before the court now plainly alleges that VALLEJO's employees negligently killed Decedent. They gave a cursory check of his mattress for signs of life, used the backhoe, and stopped what they were doing immediately when they noticed Decedent's body. (*Id.* at ¶¶ 17, 20-21.) Nothing here states a particular purpose to commit acts that violate Decedent's rights. VALLEJO's personnel are alleged to not have realized Decedent was there, however much they should have realized he was there. There is no Bane Act violation stated in the complaint.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Plaintiffs' statements of ability to amend the complaint are that they would more clearly allege VALLEJO's knowledge of the risk that people could be concealed during encampment cleanups, more clearly allege how VALLEJO's safety protocols were inadequate, and more clearly allege that VALLEJO proceeded to use heavy equipment to clean up Decedent's camp site in disregard of his rights. The promised additional allegations are only further emphasis on the theories and conclusions currently stated in the complaint and do not show additional facts supporting that VALLEJO's personnel had a particular purpose to violate Decedent's rights.

Conclusion. VALLEJO's demurrer is sustained without leave to amend.

CARMEN STRA v. FORD MOTOR COMPANY
Case No. CU26-03172

Motion to Withdraw as Attorney of Record

TENTATIVE RULING

Plaintiff's counsel's motion to be relieved is continued to October 7, 2026, at 8:30. Counsel indicates a breakdown in communications with its client. The court understands this to mean that counsel has lost contact with Plaintiff.

On its own motion, the court issues an Order to Show Cause to Plaintiff why the complaint in this action should not be stricken. Plaintiff's counsel shall provide notice of the Order to Show Cause to Plaintiff of the duty to appear on October 15, 2026, and shall file proof of service including mail, email and telephonic notice. Absent Plaintiff's personal appearance, it is the intent of this court to strike the complaint in this action based upon Plaintiff's failure to participate and cooperate the prosecution of this action.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5EazI6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002